CERTIFICATE OF INSURANCE

Driftwood Town Center | San Diego, CA

Insured	Driftwood Town Center Owner LLC
Location Covered	Driftwood Town Center, 3892 Peachtree Court, San Diego, CA 51055
Certificate Date	November 14, 2024
Mortgagee	Cobalt Bridge Lending

Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Keystone Casualty	GL8484016	08/29/2023	08/28/2024	$50,000,000	$50,000
General Liability	Prairie State Indemnity	GL7910303	10/24/2025	10/24/2026	$5,000,000	$25,000
Umbrella / Excess	Allied Heritage Insurance	GL3031426	05/05/2024	05/05/2025	$2,000,000	$10,000
Business Income	Great Lakes Mutual	CPP3561710	03/24/2024	03/24/2025	$10,000,000	$5,000
Flood	Allied Heritage Insurance	CPP9275774	01/16/2025	01/16/2026	$2,000,000	$50,000
Windstorm / Hail	Sentinel Property & Casualty	GL7856112	07/07/2023	07/06/2024	$5,000,000	$25,000
Terrorism (TRIA)	Great Lakes Mutual	UMB4249465	01/18/2025	01/18/2026	$10,000,000	$100,000
Equipment Breakdown	Great Lakes Mutual	CPP7981602	03/03/2025	03/03/2026	$25,000,000	$10,000
Ordinance & Law	Keystone Casualty	UMB9993921	01/23/2024	01/22/2025	$25,000,000	$50,000
Workers' Compensation	Great Lakes Mutual	UMB9451531	12/14/2024	12/14/2025	$50,000,000	$5,000
Cyber Liability	Sentinel Property & Casualty	UMB1252362	07/03/2023	07/02/2024	$2,000,000	$5,000
Crime / Fidelity	Sentinel Property & Casualty	CPP5592092	03/20/2025	03/20/2026	$2,000,000	$50,000
Pollution Legal Liability	Keystone Casualty	UMB5551870	02/02/2026	02/02/2027	$2,000,000	$25,000
Employment Practices	Prairie State Indemnity	GL4961546	08/30/2023	08/29/2024	$10,000,000	$50,000

Report generated 11/14/2024. Figures are unaudited and subject to change.

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Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Sentinel Property & Casualty	GL2085593	11/10/2025	11/10/2026	$10,000,000	$100,000
General Liability	Allied Heritage Insurance	GL8935769	08/21/2025	08/21/2026	$25,000,000	$10,000
Umbrella / Excess	Blue Ridge Underwriters	UMB1738822	11/29/2025	11/29/2026	$10,000,000	$100,000
Business Income	Keystone Casualty	UMB7190210	03/01/2023	02/29/2024	$5,000,000	$10,000
Flood	Blue Ridge Underwriters	GL4434580	03/09/2026	03/09/2027	$2,000,000	$100,000
Windstorm / Hail	Keystone Casualty	GL3753750	10/10/2023	10/09/2024	$25,000,000	$5,000
Terrorism (TRIA)	Prairie State Indemnity	CPP9555516	09/17/2023	09/16/2024	$25,000,000	$10,000
Equipment Breakdown	Sentinel Property & Casualty	UMB7968509	07/26/2024	07/26/2025	$50,000,000	$50,000
Ordinance & Law	Prairie State Indemnity	BOP6705154	07/14/2025	07/14/2026	$5,000,000	$5,000
Workers' Compensation	Sentinel Property & Casualty	UMB3809898	03/05/2026	03/05/2027	$50,000,000	$25,000
Cyber Liability	Prairie State Indemnity	GL9278085	05/09/2023	05/08/2024	$2,000,000	$10,000
Crime / Fidelity	Keystone Casualty	UMB3168030	06/12/2023	06/11/2024	$25,000,000	$5,000
Pollution Legal Liability	Blue Ridge Underwriters	BOP5456666	12/21/2024	12/21/2025	$5,000,000	$100,000
Employment Practices	Keystone Casualty	BOP2110211	12/29/2024	12/29/2025	$50,000,000	$100,000

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1. Appointment. Owner appoints Manager as the exclusive managing agent of Driftwood Town Center, and Manager accepts the appointment under the terms of this Agreement. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

2. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

3. Management Fee. Manager shall receive a monthly management fee equal to 4.0% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

4. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Time is of the essence with respect to each and every provision of this instrument.

5. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

6. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

7. Spending Authority. Manager may incur expenses not exceeding $259,000 individually without Owner approval, except in an emergency threatening life or property. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Sentinel Property & Casualty	GL9260055	12/22/2024	12/22/2025	$5,000,000	$25,000
General Liability	Blue Ridge Underwriters	GL8575478	02/23/2023	02/23/2024	$25,000,000	$100,000
Umbrella / Excess	Sentinel Property & Casualty	BOP1475669	04/12/2025	04/12/2026	$50,000,000	$10,000
Business Income	Great Lakes Mutual	GL5210637	07/02/2025	07/02/2026	$5,000,000	$50,000
Flood	Sentinel Property & Casualty	BOP6679800	02/22/2023	02/22/2024	$50,000,000	$5,000
Windstorm / Hail	Prairie State Indemnity	CPP9909826	04/21/2023	04/20/2024	$1,000,000	$10,000
Terrorism (TRIA)	Great Lakes Mutual	GL1852912	07/09/2024	07/09/2025	$2,000,000	$10,000
Equipment Breakdown	Blue Ridge Underwriters	BOP2353799	09/14/2024	09/14/2025	$2,000,000	$5,000
Ordinance & Law	Great Lakes Mutual	GL2315690	01/05/2023	01/05/2024	$25,000,000	$25,000
Workers' Compensation	Prairie State Indemnity	UMB1977935	02/27/2023	02/27/2024	$2,000,000	$100,000
Cyber Liability	Prairie State Indemnity	UMB3681126	07/18/2025	07/18/2026	$2,000,000	$10,000
Crime / Fidelity	Blue Ridge Underwriters	CPP4816403	03/03/2026	03/03/2027	$25,000,000	$100,000
Pollution Legal Liability	Keystone Casualty	GL3885916	06/09/2024	06/09/2025	$5,000,000	$5,000
Employment Practices	Sentinel Property & Casualty	UMB8447059	10/16/2024	10/16/2025	$5,000,000	$25,000

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8. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

9. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

10. Appointment. Owner appoints Manager as the exclusive managing agent of Driftwood Town Center, and Manager accepts the appointment under the terms of this Agreement. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

11. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

12. Management Fee. Manager shall receive a monthly management fee equal to 3.3% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

13. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Keystone Casualty	BOP7694503	08/01/2024	08/01/2025	$25,000,000	$25,000
General Liability	Blue Ridge Underwriters	BOP3804519	10/20/2023	10/19/2024	$25,000,000	$5,000
Umbrella / Excess	Blue Ridge Underwriters	UMB1097094	02/03/2026	02/03/2027	$5,000,000	$25,000
Business Income	Great Lakes Mutual	GL3603112	09/11/2024	09/11/2025	$5,000,000	$5,000
Flood	Great Lakes Mutual	BOP4394263	03/22/2026	03/22/2027	$25,000,000	$50,000
Windstorm / Hail	Sentinel Property & Casualty	UMB1742906	03/03/2023	03/02/2024	$2,000,000	$50,000
Terrorism (TRIA)	Keystone Casualty	CPP5266347	11/08/2023	11/07/2024	$2,000,000	$5,000
Equipment Breakdown	Blue Ridge Underwriters	CPP7062189	02/02/2025	02/02/2026	$50,000,000	$10,000
Ordinance & Law	Sentinel Property & Casualty	GL7420558	03/14/2026	03/14/2027	$5,000,000	$25,000
Workers' Compensation	Keystone Casualty	UMB8507659	07/24/2024	07/24/2025	$50,000,000	$10,000
Cyber Liability	Sentinel Property & Casualty	GL8000079	08/05/2023	08/04/2024	$5,000,000	$25,000
Crime / Fidelity	Great Lakes Mutual	BOP6622518	11/04/2024	11/04/2025	$50,000,000	$5,000
Pollution Legal Liability	Keystone Casualty	CPP4844702	06/21/2025	06/21/2026	$10,000,000	$25,000
Employment Practices	Allied Heritage Insurance	GL2319186	09/12/2024	09/12/2025	$2,000,000	$25,000

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15. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

16. Spending Authority. Manager may incur expenses not exceeding $335,000 individually without Owner approval, except in an emergency threatening life or property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

17. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

18. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

19. Appointment. Owner appoints Manager as the exclusive managing agent of Driftwood Town Center, and Manager accepts the appointment under the terms of this Agreement. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

20. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

21. Management Fee. Manager shall receive a monthly management fee equal to 3.0% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Blue Ridge Underwriters	CPP3118293	06/25/2023	06/24/2024	$2,000,000	$10,000
General Liability	Prairie State Indemnity	BOP5542245	07/09/2024	07/09/2025	$25,000,000	$5,000
Umbrella / Excess	Allied Heritage Insurance	BOP5766912	09/26/2023	09/25/2024	$2,000,000	$100,000
Business Income	Sentinel Property & Casualty	CPP4459444	05/07/2023	05/06/2024	$25,000,000	$10,000
Flood	Blue Ridge Underwriters	BOP1730375	06/23/2023	06/22/2024	$50,000,000	$100,000
Windstorm / Hail	Blue Ridge Underwriters	BOP9559883	02/09/2024	02/08/2025	$2,000,000	$25,000
Terrorism (TRIA)	Great Lakes Mutual	BOP5176728	10/05/2023	10/04/2024	$5,000,000	$50,000
Equipment Breakdown	Keystone Casualty	UMB6102070	12/10/2025	12/10/2026	$10,000,000	$50,000
Ordinance & Law	Blue Ridge Underwriters	BOP1579963	06/05/2023	06/04/2024	$50,000,000	$50,000
Workers' Compensation	Keystone Casualty	GL1990542	02/26/2023	02/26/2024	$5,000,000	$50,000
Cyber Liability	Great Lakes Mutual	UMB5746714	04/01/2025	04/01/2026	$1,000,000	$5,000
Crime / Fidelity	Keystone Casualty	CPP6157888	12/10/2024	12/10/2025	$10,000,000	$10,000
Pollution Legal Liability	Allied Heritage Insurance	BOP7258380	04/24/2023	04/23/2024	$10,000,000	$50,000
Employment Practices	Prairie State Indemnity	GL6386460	07/10/2025	07/10/2026	$1,000,000	$10,000

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22. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

23. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

24. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

25. Spending Authority. Manager may incur expenses not exceeding $234,000 individually without Owner approval, except in an emergency threatening life or property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

26. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

27. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

28. Appointment. Owner appoints Manager as the exclusive managing agent of Driftwood Town Center, and Manager accepts the appointment under the terms of this Agreement. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Prairie State Indemnity	GL4312289	08/16/2024	08/16/2025	$10,000,000	$10,000
General Liability	Allied Heritage Insurance	GL7500051	01/26/2025	01/26/2026	$1,000,000	$5,000
Umbrella / Excess	Keystone Casualty	CPP7263209	01/20/2025	01/20/2026	$10,000,000	$25,000
Business Income	Keystone Casualty	GL1652490	07/29/2024	07/29/2025	$1,000,000	$5,000
Flood	Keystone Casualty	CPP6823394	08/24/2025	08/24/2026	$50,000,000	$25,000
Windstorm / Hail	Sentinel Property & Casualty	UMB6986849	05/02/2026	05/02/2027	$1,000,000	$10,000
Terrorism (TRIA)	Keystone Casualty	BOP6029676	06/25/2023	06/24/2024	$25,000,000	$25,000
Equipment Breakdown	Keystone Casualty	BOP2844317	06/01/2023	05/31/2024	$2,000,000	$5,000
Ordinance & Law	Prairie State Indemnity	BOP6983910	07/07/2024	07/07/2025	$5,000,000	$10,000
Workers' Compensation	Sentinel Property & Casualty	GL4255119	11/13/2024	11/13/2025	$5,000,000	$25,000
Cyber Liability	Blue Ridge Underwriters	BOP8614148	06/09/2025	06/09/2026	$1,000,000	$50,000
Crime / Fidelity	Blue Ridge Underwriters	CPP1854248	02/19/2023	02/19/2024	$1,000,000	$5,000
Pollution Legal Liability	Sentinel Property & Casualty	GL1267659	08/19/2025	08/19/2026	$1,000,000	$50,000
Employment Practices	Sentinel Property & Casualty	BOP3456798	03/17/2024	03/17/2025	$10,000,000	$10,000

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29. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

30. Management Fee. Manager shall receive a monthly management fee equal to 3.1% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

31. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

32. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

33. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

34. Spending Authority. Manager may incur expenses not exceeding $220,000 individually without Owner approval, except in an emergency threatening life or property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

35. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Great Lakes Mutual	UMB7025065	03/08/2026	03/08/2027	$5,000,000	$10,000
General Liability	Blue Ridge Underwriters	GL1490799	09/05/2025	09/05/2026	$25,000,000	$25,000
Umbrella / Excess	Blue Ridge Underwriters	CPP2238490	07/30/2025	07/30/2026	$2,000,000	$50,000
Business Income	Prairie State Indemnity	UMB8890389	12/02/2025	12/02/2026	$50,000,000	$100,000
Flood	Great Lakes Mutual	CPP5598007	04/27/2025	04/27/2026	$50,000,000	$5,000
Windstorm / Hail	Allied Heritage Insurance	CPP7229290	01/25/2023	01/25/2024	$50,000,000	$50,000
Terrorism (TRIA)	Sentinel Property & Casualty	BOP2877913	05/16/2023	05/15/2024	$5,000,000	$50,000
Equipment Breakdown	Sentinel Property & Casualty	BOP5558478	11/17/2024	11/17/2025	$1,000,000	$5,000
Ordinance & Law	Sentinel Property & Casualty	UMB4257504	03/19/2026	03/19/2027	$25,000,000	$5,000
Workers' Compensation	Sentinel Property & Casualty	BOP4976468	01/18/2023	01/18/2024	$25,000,000	$50,000
Cyber Liability	Great Lakes Mutual	CPP5937729	04/30/2023	04/29/2024	$1,000,000	$5,000
Crime / Fidelity	Keystone Casualty	UMB7659807	03/04/2025	03/04/2026	$10,000,000	$100,000
Pollution Legal Liability	Blue Ridge Underwriters	UMB2047205	06/07/2025	06/07/2026	$1,000,000	$50,000
Employment Practices	Prairie State Indemnity	GL3800192	12/24/2024	12/24/2025	$10,000,000	$25,000

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Disclaimer and Confidentiality

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Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This document relates solely to Driftwood Town Center and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only